

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, June 4, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-03369	Veronica Padron vs Bhavesh Patel, et al.
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Motion for Terminating Sanctions

Plaintiff's motion for terminating sanctions against Defendant Bhavesh Patel is GRANTED. Defendant Bhavesh Patel's answer is hereby stricken and the clerk is ordered to enter Defendant's default.

Although terminating sanctions are a drastic remedy and generally disfavored, they are appropriate when other sanctions have failed and the court is left with no alternative. Here, Defendant Bhavesh Patel has disregarded multiple court orders, repeatedly and without excuse or explanation failed to participate in the litigation, and ignored discovery, all resulting in delays of the trial. This includes failing to appear at the mandatory settlement conference without notice to opposing counsel. Defendant has also not responded to or opposed the instant motion.

The Court finds that Defendant Bhavesh Patel's failure to participate in the litigation, despite initially answering the complaint, and failure to attend litigation proceedings was willful, and that no lesser sanction will produce compliance with this Court's orders or which the rules of discovery.

The request for monetary sanctions is DENIED, in light of the terminating sanctions.

23CV-04736

Maria Rodriguez Barajas vs Dollar General Corporation

Motion for Order Deeming Matters Contained in Requests for Admission, Set Two, Admitted, & Request for Sanctions

Plaintiff's motion to have Requests for Admission, Set Two, deemed admitted is GRANTED. Defendant failed to provide timely responses to Requests for Admission, Set Two. The matters specified in Plaintiff's Requests for Admission, Set Two, are deemed admitted, unless Defendant serves, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure § 2033.220.

The request for monetary sanctions is GRANTED. Monetary sanctions in the amount of \$250 are to be paid to Plaintiff within thirty (30) days of this court's order.

Motion for Order Compelling Responses to Form Interrogatories, Set Three & Request for Sanctions

Plaintiff's motion to compel responses to Form Interrogatories, Set Three, is GRANTED. Defendant has failed to provide timely responses to Form Interrogatories, Set Three. Objections are waived.

Defendant shall serve verified, code-compliant responses, without objections, within thirty (30) days of the date of service of this order.

The request for monetary sanctions is GRANTED. Monetary sanctions in the amount of \$250 are to be paid to Plaintiff within thirty (30) days of this court's order.

25CV-04165

Tamela Qualls vs Department of Motor Vehicles

Writ of Mandate

Appearance required.

26CV-00334

Raymond Lamerson vs MeyerPink Law, et al.

Motion to Strike Pursuant to Code of Civil Procedure 425.16

Defendant MeyerPink Law's special motion to strike is GRANTED WITHOUT LEAVE TO AMEND.

An anti-SLAPP motion is analyzed in two stages, or prongs. First, the moving party must make a threshold showing that the challenged cause of action arises from an act in furtherance of the right of petition or free speech in connection with a public issue. (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 192.) Where the moving party meets this burden, the analysis proceeds to the second prong: the burden shifts to